

The Orissa State Lottery Rules, 1983

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State of Odisha - Act

The Orissa State Lottery Rules, 1983

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The Orissa State Lottery Rules, 1983

Rule THE-ORISSA-STATE-LOTTERY-RULES-1983 of 1983

Published on 1 September 1983

Commenced on 1 September 1983

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The Orissa State Lottery Rules, 1983

Published vide Notification No. 32152-Inv.-39/83-F./1.9.1983

Notification No. 32152-Inv., 39/83-F., dated 1st September, 1983. - The following rules made by the Government of Orissa for the conduct of the State Lottery Scheme by the Government under Sole Managing Agency System are published for general information :

1.

Preliminary.

(1)

These rules may be called the Orissa State Lottery Rules, 1983.

(2)

They shall come into force with immediate effect.

(3)

These rules supersede to Orissa State Lottery Rules, 1970.

2.

Scheme of the lottery.

- The Orissa State Lottery (hereinafter called the State Lottery) shall be run by the Government of Orissa in the Finance Department (hereinafter called the Government) and shall be administered by [an officer not below the rank of a Deputy Secretary to Government, Finance Department]

[Substituted vide Notification No. 40331-F./28.9.1984.]

as ex-officio Director of Orissa State Lottery (hereinafter called the Director) appointed by and subject to the control of Government.

3.

The Scheme will be implemented under the general guidance of a Committee consisting of the following members :

(1)

Secretary, Industries Department

Member

(2)

Secretary, Irrigation and Power Department

Member

(3)

Secretary, Finance Department

Member

(4)

Additional Secretary, Finance Department

Convenor-Secretary of the Committee.

The Committee will be competent to make such changes in the Scheme and rules as may be found necessary from time to time; provided that it shall obtain the approval of the Government for any major change involving financial commitments.

4.

Printing and issue of lottery tickets.

(1)

The tickets for the State Lotteries shall be printed in a Government Press or at any Press of repute as may be approved by Government. As a check against unauthorised printing and sale of tickets, the facsimile signature of Secretary to Government, Finance Department, shall be impressed on the tickets.

(2)

Tickets for the State Lotteries shall be issued in the denomination of Rupee One and in such other denominations as the Government may from time to time decide.

(3)

Tickets shall be issued in distinct and separate series and each such series shall be distinguished by a distinct alphabetical notation such as A, B, C, AA, BB, CC and the like.

(4)

Each series shall consist of not more than 9,99,999 tickets and shall be numbered consecutively from 0,00,001.

(5)

The Government shall decide the number of series to be released for sale for each draw and the number of tickets in each series.

5.

Number and amount of prizes and eligibility therefor.

(1)

The number and amount of prizes for each draw shall be determined and indicated on the reverse of each ticket issued for sale.

(2)

All prizes are guaranteed by Government.

(3)

[A ticket can win only one prize and that is the highest prize drawn against it.]

[Substituted vide Notification No. 2093/13.1.1984.]

6.

Sale of tickets.

- The State Lottery tickets will be sold to the public through the Sole Managing Agent appointed by the Government. Tickets issued to the Sole Managing Agent shall be treated as sold and stamped as 'prepaid'.

7.

Draw of the State Lotteries.

(1)

The date of the draw of the Lotteries shall be indicated on the tickets themselves.

(2)

The Government shall have the right to postpone the date of the draw. Due publicity of such postponement and also of the revised date of draw shall however be given.

(3)

The draw shall be made by use of the 'Lottery Machines' specially designed for the purpose [or as prescribed in Sub-rule (7) of this rule.]

[Inserted vide Notification No. 43273-F./18.11.1983.]

(4)

The time and place where the draw is to be held shall be given wide publicity. The draw shall be held in public and under the supervision of a Committee of Judges specially nominated for the purpose. The Committee of Judges shall consist of not less than three members [including a Chairman]

[Added vide Notification No. 43623/22.11.1983.]

out of which not less than two shall be state Officials nominated by the Director and one outsider nominated by the Sole Managing Agent. In the event of the absence of the Chairman, the Committee of Judges present will select a Chairman from among themselves.

(5)

At any time during the draw two Judges shall form the quorum.

(6)

A list duly authenticated by the Director, indicating the notations of the series released for sale and a list of numbers issued in the series shall be made available to the panel of Judges.

(7)

(i)

There will be seven drums located in a conspicuous place by the side of the pandal where the Judges will be sitting. The drums will bear the following identification labels :

I

II

III

IV

V

VI

VII

(Lakhs)

(Ten thousand)

(Thousands)

(Hundreds)

(Tens)

(Units)

(Notation)

The Judges of the Committee shall decide about the number of discs bearing digit numbers to be placed in Drum No. 1.

The next five Drums will contain ten discs bearing digits 0 to 9. The discs numbering 6 and 9 shall have further

identification labels (Six) and (Nine). Each disc will be encased in a plastic pouch, so that the number of disc cannot be seen. All the plastic pouches shall be identical. The Judges will satisfy themselves that all the discs encased in plastic pouches are put in the Drums before the draw begins. The draw will commence with the ringing of a bell by one of the Judges and all the Drums will be rotated for about one minute so that the plastic pouches containing the discs get well shuffled. When the Judge rings the bell again, the drums will be halted. On the halting of the drums, one pouch from the 1st Drum will be picked up by a person called to pick up the pouches. The pouch shall be taken to the nearest Judge sitting on the pandal who will open it and announce the digit in the disc and this will also be announced over the mike. This number shall be simultaneously put in the Notice Board. This process shall be continued for all the six drums serially in ascending order and the six digits taken from the Drums I, II, III, IV, V and VI will be arranged on the Notice Board from left to right.

(ii)

In respect of prizes exceeding Rs. 1,000 for each series, the prize winning numbers shall be drawn in full for all the six digits as in Sub-rule (i) above.

(iii)

[In fact of prizes of Rs. 1,000 and below the prize winning numbers will not be drawn in full but a combination of last digits (five, four, etc.) as may be necessary relating to the number of Prizes in each series looking to the number of tickets in that series will be drawn separately. The method of drawing those prizes shall be indicated in the scheme issued from time to time under Rule 12 of these rules.]

[Substituted vide Notification No.2093/13.1.1984.]

(iv)

The common prizes in respect of any draw for all the series, if there be any, will be drawn [either before or after the lucky numbers of all series are drawn, as may be considered convenient]

[Substituted vide Notification No. 43273-F./18.11.1983.]

. The procedure for drawing the common prize will be as follows :

Two sets of discs showing the notations of all the series will be kept in Drum VII and the lucky series will be drawn according to the procedure prescribed for drawing the lucky numbers. Thereafter the lucky number with the lucky series will be drawn in the usual manner. The Ticket in the lucky series and with the lucky number will win the common prize.

(v)

The prize winning number shall be entered by each of the Judges of the panel present at the time of the draw in the blank result Sheets supplied for the purpose, simultaneously as the series and numbers are announced over the mike and indicated on the Notice Board. The result sheets thus entered by the Judges shall be handed over duly signed shall form the basis for recording the results in the Register of Prize Winning Numbers.

(vi)

Wide publicity shall be given through national dailies of all India circulation to the list of prize winning numbers. The list shall also be published in the Official Gazette and such publication shall constitute the official announcement of the results for purposes of draw.

8.

Every prize amount shall be claimed by submitting a claim bill for the prize amount in Form O.S.L.-I together with the prize winning ticket. Winners of prizes exceeding Rs. 1,000 shall claim the prize amounts from the Director of State Lotteries only. Other prizes shall be arranged to be disbursed by the Sole Managing Agent.

9.

It is not necessary for the prize winner to present the claim in person, nor it is necessary to have any identification of the prize winner. Payment will be made in the name of the person who signs the claim bill to which the prize winning ticket is attached. The prize exceeding Rs. 1,000 shall be claimed through a Scheduled Bank having its office in Orissa. Prizes of Rs. 1,000 and below shall be paid in cash or by money-order if so requested in writing after deducting the money-order commission. A ticket which is torn or mutilated will not be considered as valid ticket for any prize.

10.

All winners of prizes shall claim the prize amounts within forty five days from the date of draw. No claim for a prize will be entertained after expiry of the said period of forty-five days. Prize amounts not claimed within the aforesaid time-limit as also the prize amounts in respect of claims rejected by the Director of State Lotteries shall lapse and amounts shall automatically stand forfeited.

11.

Notwithstanding anything stated in the foregoing rules it shall be lawful for Government to delegate, or permit delegation of powers vested in it or any other authority under these rules to such officer for such purpose and subject to such condition as it may specify by order in writing.

12.

[

[Substituted vide Notification No. 2093/13.10.1984.]

The Government reserves the right to alter or modify the terms and conditions governing the Orissa State Lottery Scheme. The number of tickets in each series, series numbers, date of draw, details of prize structure, other terms and conditions and the method of drawing prizes as may be prescribed in the scheme covering the number of draws included in the Scheme shall be notified in the Official Gazette.]

13.

If any question arises as to the interpretation of these rules or any other matter not expressly provided for in these rules, the matter shall be referred to the Government and the decision of the Government shall be final. In case of any dispute, the decision of the Committee constituted in Rule 3 shall be final

14.

All correspondences from outside the State shall be made only in English.

15.

Circulation and sale of tickets are prohibited outside India and in places in India where lotteries are prohibited by law.

16.

Appointment of Agency.

- The Government may appoint a Sole Managing Agent to run on its behalf the State Lottery according to these rules and subject to the overall control and supervision of the Government and Director. For the purpose of such Agency an agreement specifying such terms and conditions as may be agreed to shall be executed between the Sole Managing Agent and the Government.

17.

Accounting.

(1)

The receipts from the State Lottery Scheme shall be credited under the head "068-Miscellaneous General Services-State Lotteries".

(2)

The expenditure on payment of prize money shall be debitable to "Demand No. 5-268-Miscellaneous General Services-State Lotteries".

(3)

The expenditure on establishment for running the State Lotteries will be recorded under the head "Demand No. 5-265-Other Administrative Services-Other Expenditure".

(4)

The net proceeds of the State Lottery Scheme shall be utilised for any of the specific project/projects as may be decided by Government from time to time.

18.

These rules shall constitute a binding contract between the Government and the Sole Managing Agent appointed thereunder and the persons who purchase lottery tickets issued hereunder and such a contract shall in each case be deemed to be made at Bhubaneswar, and no legal proceedings pertaining to any matter connected with this Lottery Scheme shall be instituted in any Court other than the appropriate Court within the jurisdiction of which disputes in Bhubaneswar are settled.

Form O.S.L.-I

Claim bill for prize amount

Head of Services-"Demand No. 5-268-Miscellaneous General Services-State Lotteries -Payment of the Prize Amount".

Name and full address of the Prize winner.....

Father's name.....

No. of Prize Winning ticket with No. of Series.....

Rank of the Prize.....

Amount of Prize.....

Received thisday of.....20.....the sum of Rsbeing the Prize Amount payable on the Prize Winning ticket mentioned above and attached herewith.

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